

Calendar Line 6

Case Name: *Capital One, N.A. v. Wright*

Case No.: 26CV484320

BACKGROUND

Plaintiff Capital One, N.A. (“Plaintiff”) brings this action for breach of contract against Defendant Kathie Wright (“Defendant”) with regards to a credit card account. Plaintiff alleges “Defendant failed to make payments on the contract as agreed, and despite Plaintiff’s demand, Defendant continues to refuse to pay Plaintiff in the amount owed under the contract.” (Complaint at p. 3.) Defendant is in default and the unpaid balance owed is \$6,051.39. (*Ibid.*)

Defendant moves to arbitrate these claims based on the Cardmember Agreement (“the Agreement”). Having reviewed the Agreement, the unopposed motion is GRANTED.

LEGAL STANDARD

Defendant maintains the Federal Arbitration Act (“FAA”) governs the Agreement. The Agreement provides, “[t]his arbitration agreement is governed by the Federal Arbitration Act (‘FAA’).” (Mtn. to Compel Arbitration, Ex. A at p. 3.) Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

ANALYSIS

There is a Valid Agreement to Arbitrate

A valid agreement to arbitrate exists between the parties. The moving party bears the burden of producing prima facie evidence of an agreement to arbitrate the controversy. The moving party can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165 [internal citations and quotations omitted].) Here, Defendant has attached a copy of the Cardmember Agreement containing the arbitration clause as an exhibit to her motion. (Mtn. to Compel Arbitration, Ex. A.) Although the Agreement does not bear any signatures by either party, “it is not the presence or absence of a signature which is dispositive; it is the presence or absence of evidence of an *agreement* to arbitrate which matters.” (*Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 361 [emphasis in original].) In this instance, the memorialized terms of arbitration in the Cardmember Agreement are evidence of an agreement to arbitrate. Additionally, Plaintiff’s effort to enforce the Agreement is evidence of her intent to be bound by its terms. (*Serafin v. Balco Properties, LLC* (2015) 235 Cal.App.4th 165, 176 [“Evidence confirming the existence of an agreement to arbitrate, despite an unsigned agreement can be based, for example on conduct from which one could imply either ratification or implied

acceptance of such a provision.”].) Therefore, a valid agreement to arbitrate exists between the parties.

The Scope of the Agreement Covers Plaintiff’s Claims

The scope of the arbitration provision in the Cardmember Agreement covers Plaintiff’s claims. The Agreement provides:

In the event of a dispute between you and us, arising out of or relating to this Account or the relationships resulting from this Account or any other dispute between you or us, including, for example, a dispute based on federal or state statute or local ordinance (“Claim”), either you or we may choose to resolve the Claim by binding arbitration, as described below instead of in court.

(Mtn. to Compel Arbitration, Ex. A.)

Plaintiff’s claim pertains to the credit card account held by Defendant. Plaintiff’s allegations are that Defendant has failed to make payments on the account and is now in default of \$6,051.39. (Complaint at p. 3.) Thus, Plaintiff’s claims are covered by the scope of the Agreement.

Plaintiff does not object to these arguments. In fact, Plaintiff has not filed any opposition whatsoever. The failure to timely file an opposition is a basis for the Court to grant the motion, as the Court may construe such non-opposition as a concession that the motion is meritorious. (See *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4; see also Cal. Rule of Court 8.54, subd. (c) [appellate rule stating that “[a] failure to oppose a motion may be deemed consent to granting of the motion”].)

For these reasons, the Court GRANTS the Motion to Compel Arbitration. This action is hereby STAYED pending the outcome of arbitration. (Code Civ. Proc. § 1281.4; 9 U.S.C. § 3.)

CONCLUSION

The Motion to Compel Arbitration is GRANTED. This action is STAYED pending the outcome of arbitration.

The matter shall be set for a Status Review re: Arbitration on February 5, 2027 at 11:00 a.m. in Department 13.

Moving party shall prepare and submit the final order, accompanied by the necessary Form EFS-020, within 10 days of the date of the hearing.

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